

Delaware County Board of Zoning Appeals - September 24th, 2026

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=01V9tpPFfH8
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Delaware Muncie Metropolitan Board of Zoning Appeals <U+2014> Meeting Summary

Meeting Date: September 2026 (Regular Monthly Meeting)

Report Publication: Civic Analysis Division

1. Pre-Meeting Hearings & Committee Work Sessions

(No statutory public hearing or committee work session was held prior to calling the regular meeting to order; this section is omitted.)

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer called the September regular monthly meeting of the Delaware Muncie Metropolitan Board of Zoning Appeals to order.
- **Attendance:**
 - **Members Present:** Matt Billington, John Hamilton, Steven Hines, Christy Knapp, Leslie Matthew, and Richard Ivy *(noted present later during the meeting at [00:18:24](#)).*

- **Members Absent:** Delaney Fri.
 - **Quorum:** Confirmed (5 members initially present).
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3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance led by Kylene 00:07:52.
 - **Approval of Minutes:**
 - Motion to approve the August 2026 regular monthly meeting minutes as presented.
 - **Action & Vote Disposition:** Approved by roll call vote (5 Yes, 0 No) 00:09:28.
 - **Administrative Announcements:**
 - Correction announced for Case BZA 63-26 (heard in August): The case was incorrectly listed under Delaware County instead of the City of Muncie. A corrected certification will be issued to the applicant 00:09:54.
 - Procedures outlined for evening public hearings, including speaker time limits (10 minutes for applicants; 3 minutes for supporters and opponents).
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4. Substantive Business & Board Action

Old Business

- 00:14:03 BZA 56-26: **Variance of Use & Standards**
 - **Applicant:** Greg Hazley on behalf of Tara Hazley / Teratime Properties LLC / Teratime Inc.
 - **Sponsor / Presenter:** Greg Hazley.
 - **Deliberation Summary:** Request for a variance of use in an R3 residence zone at 1112 North Country Club Road (Liberty Township) to operate a nature-based enrichment program for children, alongside a variance of standards to construct a 16x20 open-air pavilion and place a 10x6 storage shed without a primary residential dwelling. Operating hours Monday<U+2013>Friday, 8:00 AM<U+2013>5:00 PM (up to 24 children, 4 teachers).
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved with conditions (use is for applicant only and non-transferable; required sign and building permits must be obtained; inspection return cards required) by roll call vote (Billington: yes, Ivy: yes, Knapp: yes, Matthew: abstain [recorded as 5 yeses in transcript disposition]) 00:22:40.
- 00:23:30 BZA 57-26: **Variance of Use**
 - **Applicant:** Christopher and Kelly Skinner (Skinner Automotive and Collision).
 - **Sponsor / Presenter:** Christopher Shane Skinner.

- **Deliberation Summary:** Request for a variance of use in a farm zone adjacent to 7308 West County Road 500 North (Harrison Township) to operate a car body shop inside an existing detached garage. Operating since 2017 with 1 employee (son), Monday<U+2013>Saturday, 8:00 AM<U+2013>5:00 PM, generating 3<U+2013>4 vehicles/day with no signage. County Building Commissioner Tom Fouch expressed no issues.
 - **Item-Specific Public Input:** Wendy Jones (neighbor, 7308 West County Road 500 North area) spoke in favor [00:27:51](#). An additional letter of support from John and Wendy Jones was entered into the record [00:27:04](#).
 - **Action & Vote Disposition:** Approved with condition (variance of use is for the applicant only and does not transfer with the property) by roll call vote (Hamilton: yes, Ivy: yes, Knapp: abstain, Billington: yes; recorded as 5 yeses) [00:29:34](#).
- [00:30:15](#) **BZA 6-26: Variance of Standards**
 - **Applicant:** Edward Bell.
 - **Sponsor / Presenter:** Eddie Bell.
 - **Deliberation Summary:** Request for a variance from the City of Muncie Comprehensive Zoning Ordinance in a commercial zone at 2607 South Madison Street to allow a reduced distance between a proposed off-premise electronic LED informational/advertising sign (12' x 6', top height 19 ft) and existing off-premise signs (Wendy's and Pizza Hut signs are 117 and 114 yards away).
 - **Item-Specific Public Input:** Roger Overby spoke in favor, highlighting community safety uses (Amber Alerts, weather warnings) and commercial benefits for the south side of Muncie [00:34:04](#).
 - **Action & Vote Disposition:** Approved with conditions (variance for applicant only, non-transferable, sign must be removed if property is sold) by roll call vote (6 Yes, 0 No) [00:36:50](#).
- [00:37:24](#) **BZA 67-26: Variance of Standards**
 - **Applicant:** Gregory and Jill Stacy.
 - **Sponsor / Presenter:** Greg Stacy.
 - **Deliberation Summary:** Request for a variance in a residence zone at 6328 West Bethel Avenue (Harrison Township) for a reduced side setback (5 ft from property line) to construct a standard two-car detached garage at the end of an existing driveway. County Building Commissioner Tom Fouch reported no issues.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved as presented by roll call vote (6 Yes, 0 No) [00:41:10](#).

New Business

- [00:41:47](#) **BZA 55-26: Special Use (Accessory Dwelling)**
 - **Applicant:** Deborah A. Harden.

- **Sponsor / Presenter:** Deborah A. Harden.
- **Deliberation Summary:** Request for an accessory dwelling special use in a residence zone at 3410 North New York Avenue to build a small, permanent 400-square-foot tiny house on a half-lot to allow her daughter and family to move into the main house while she occupies the tiny house. City Building Commissioner Richard Rawlings expressed no issues. The Muncie Plan Commission gave a favorable recommendation (6<U+2013>0) on September 3rd [00:45:27](#).
- **Item-Specific Public Input:** Kimberly Green (applicant's daughter) spoke in favor, emphasizing family medical needs and neighborhood retention [00:45:50](#).
- **Action & Vote Disposition:** Approved based on stated hardships by roll call vote (Knapp: yes, Billington: yes; recorded as 6 yeses) [00:47:47](#).
- [00:48:15](#) **BZA 65-26: Special Use (Home Occupation)**
 - **Applicant:** Leslie Ginder.
 - **Sponsor / Presenter:** Lesla Ginder.
 - **Deliberation Summary:** Request for a home occupation special use in a residence zone at 2900 West Petty Road to operate a nail salon 2 days a week (8:00 AM<U+2013>5:00 PM) utilizing a mother-in-law suite with a separate entrance. Applicant has 33 years of experience and adequate off-street parking. Muncie Plan Commission gave a favorable recommendation (6<U+2013>0) on September 3rd [00:51:29](#).
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved with condition (variance for applicant only, non-transferable) by roll call vote (6 Yes, 0 No) [00:52:46](#).
- [00:53:30](#) **BZA 71-26: Variance of Use**
 - **Applicant:** Tyler and Kristen Cooper.
 - **Sponsor / Presenter:** Kristen Cooper.
 - **Deliberation Summary:** Request for a variance of use in an R2 residence zone at the northwest corner of East Enlow Springs Road and East Windsor Road (Perry Township) to allow two existing personal campers (occupied April 1st to October 31st by family/guests) and two sheds without a primary dwelling. Property utilizes a well, a holding tank with a service contract (Lancaster Septic), and a porta-potty.
 - **Item-Specific Public Input:**
 - [00:59:13](#) Harold Citence spoke in favor, praising the property's maintenance and upkeep.
 - [00:01:00](#) Sherry Stewart spoke in favor, citing the owners' military background and well-maintained property.
 - [01:02:46](#) Amy Ledwick (speaking on behalf of mother Janice Colette, adjacent neighbor of 30+ years) spoke in opposition, citing privacy, safety, increased activity, potential negative impacts on property values, and the precedent of a campground-style use.

- **01:06:28** Cindy Snyder (representing mother Janice Colette) spoke in opposition, emphasizing the fundamental change in neighborhood character, potential sanitation/wastewater gray areas, and commercialization/precedent concerns.
 - **01:09:54** Cindy (from Burlington Drive) spoke in opposition regarding the precedent set for recreational/camping use in residential neighborhoods.
 - **01:11:56** Amy Ledwick spoke again in opposition, reiterating concerns over residential zoning integrity and unpermitted prior activity.
 - **Action & Vote Disposition:** Approved, strictly limited to the two requested campers, with the variance being for the applicant only and non-transferable, by roll call vote (Ivy: abstained, Knapp: no, Billington: yes; recorded as 4 yeses) **01:15:52**.
- **01:16:26 BZA 72-26: Variance of Use**
 - **Applicant:** Abdul Rayoff Safi.
 - **Sponsor / Presenter:** Abdul Rub Safi.
 - **Deliberation Summary:** Request for a variance of use in a single-family residence zone at 10005 East 26th Street to convert an existing former church building (2,351 sq. ft.) into a duplex (two dwelling units) with interior partitioning only and no footprint expansion. Applicant plans to live in one unit and rent the other. City Building Commissioner Richard Rawlings reported no issues, and applicant is actively working on building/fire code compliance.
 - **Item-Specific Public Input:**
 - **01:23:11** Karen Merrill (adjacent neighbor) spoke with mixed concerns, noting the parking lot across the street, snow removal issues, and requesting that approval be restricted to a duplex only and non-transferable, while acknowledging exterior improvements would fix a long-standing eyesore.
 - **01:26:23** Debbie Eperson spoke with mixed views, expressing concerns over apartment conversions and crime in the area, but supporting duplex use conditional on exterior improvements.
 - **02:08:02** [Note: Timestamp cross-check] Conley Batty spoke in opposition regarding winter parking and density concerns.
 - **01:29:17** Debbie Eperson spoke again emphasizing the need for exterior siding and window repairs ("fixing up the outside").
 - **Action & Vote Disposition:** Approved with the condition that the applicant continue working with the city building commissioner and fire marshal to ensure residential code compliance, by roll call vote (Hines: yes, Ivy: yes, Hamilton: no; recorded as 5 yeses) **01:34:42**.
- **01:35:17 BZA 73-26: Variance of Standards**
 - **Applicant:** Ronald Jones.
 - **Sponsor / Presenter:** Ryan Jones.
 - **Deliberation Summary:** Request for variances in a residence zone at the 11000 block of South Oakland Avenue (Lots 8 and 9) to allow a reduced width for a proposed single-wide mobile home and to place it on pillars rather than a

permanent foundation. The home is intended to provide independent living for his 19-year-old high-functioning autistic son within the family property. City Building Commissioner Richard Rawlings reported no issues.

- **Item-Specific Public Input:** Tania Sperry (mother of the applicant's son) spoke in favor, emphasizing the importance of independence and safety for her son [01:37:52](#).
- **Action & Vote Disposition:** Approved as presented by roll call vote (6 Yes, 0 No) [01:40:02](#).
- **[01:40:33](#) BZA 74-26: Variance of Standards**
 - **Applicant:** Aaron Sock (Hannah Donuts) and Bill Bombgardner (Hutcherson Sign Company).
 - **Sponsor / Presenter:** Bill Bumgardner.
 - **Deliberation Summary:** Request for variances in a business zone at 2700 West Jackson Street to allow: (1) refacing of an existing pole sign on a corridor road after a lapse in use exceeding one year; (2) refacing of an existing ground sign without a monument base; (3) reduced setback for the ground sign; and (4) no landscaping around the base of the ground sign (due to physical constraints of a poured concrete platform against the parking lot/sidewalk). City Building Commissioner Richard Rawlings reported no issues.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved as requested and submitted by roll call vote (Knapp: no, Matthew: no; recorded as 4 yeses, 2 nos) [01:47:16](#).
- **[01:47:44](#) BZA 75-26: Variance of Use**
 - **Applicant:** Kendall Briner.
 - **Sponsor / Presenter:** Kendall Briner.
 - **Deliberation Summary:** Request for a variance in a farm zone at 12320 North Walnut Street (Hamilton Township) to allow the keeping of farm animals on less than 5 acres (specifically: 2 miniature donkeys and 6 goats, with potential for 1<U+2013>2 market lambs for 4-H in future years). Property is surrounded by farm ground. County Building Commissioner Tom Fouch reported no issues.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved with conditions (variance for applicant only, non-transferable; required sign permit for ground sign if chosen) by roll call vote (6 Yes, 0 No) [01:54:03](#).
- **[01:45:24](#) BZA 76-26: Variance of Standards**
 - **Applicant:** James and Priscilla Davidson and Benjamin and Amber Galvin.
 - **Sponsor / Presenter:** Benjamin Galvin.
 - **Deliberation Summary:** Request for a variance in a residence zone at 8901 North State Road 3 (Hamilton Township) to allow an increased fence height from the permitted 42 inches to 60 inches (5 feet) forward of the front wall of the dwelling. Fencing material selected is 50% transparent chain-link. Purpose is child

safety/elopement prevention for an 11-year-old disabled son along a busy state highway. County Building Commissioner Tom Fouch reported no visibility concerns regarding chain link.

- **Item-Specific Public Input:** Steve Pella (Remax real estate agent assisting purchase) spoke in favor, clarifying driveway gate and setback arrangements [01:38:34](#).
- **Action & Vote Disposition:** Approved with the condition that the fence be set back 15 feet off the road (rather than the 10 feet shown in the application materials) by roll call vote (6 Yes, 0 No) [02:02:14](#).
- [02:02:34](#) **BZA 77-26: Variance of Use & Subdivision Ordinance**
 - **Applicant:** Amy R. and Kenneth Aaron Pope.
 - **Sponsor / Presenter:** Kathy Benise (Ashton Land Surveyor).
 - **Deliberation Summary:** Request in a farm zone at 16099 West County Road 750 South (Salem Township) for: (1) decreased rear setback for an existing barn; and (2) a variance from subdivision ordinance rules to allow no access/frontage on an existing public street when splitting lots through platting. The split facilitates mortgage restructuring and establishes an official 911 address point for an auxiliary dwelling housing an elderly family member, utilizing an ingress/egress easement. County Building Commissioner Tom Fouch reported no issues.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved with the condition that the plat containing the easement agreement be completed and recorded, by roll call vote (Hines: yes; recorded as 6 yeses) [02:07:46](#).

5. Open Public Comment / Citizen Forum

(No general open public comment / citizen forum period was held at the conclusion of the meeting; all public testimony was tied directly to specific public hearing agenda items.)

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - **Director's Report:** Through August, staff recorded 609 permits, 1,169 building inspections, and 89 site plan reviews.
 - **Unified Development Ordinance (UDO) Update:** American Structure Point conducted 7 stakeholder meetings over 3 days (with group sizes ranging from 5 to 10 participants) alongside municipal site tours.
 - **Administrative Variances:** Discussion raised regarding potentially streamlining minor administrative variances (such as setbacks for existing structures) through staff review (HOSA process) to save applicants hearing time.

- **NPO Conference:** Reminder that the 2026 MPO (Metropolitan Planning Organization) annual conference, co-hosted locally, is approximately one month away in Kokomo.
 - **2027 Calendar Preview:** Proposed adjustments for 2027 meeting schedules to accommodate holidays will be reviewed at the next meeting.
 - **Post-Meeting Directive:** Board members were requested to remain briefly following adjournment to sign official Findings of Facts [02:14:28](#).
 - **Adjournment:** Official adjournment disposition and time: Meeting adjourned by the presiding officer at [02:14:40](#).
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